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[TENTATIVE] ORDER SUSTAINING IN

PART AND OVERRULING IN PART DEFENDANT EDVARD AKOPYAN'S DEMURRER TO THE FAC

I. INTRODUCTION

On March 6,

2025, Plaintiff Sam B. Makhianian ("Plaintiff") filed the instant action against Defendants Edvard Akopyan ("Akopyan"), Svetlana Abelyan ("Svetlana"), and the Testate and Intestate Successors of Selma Tandrzhyan aka Selma Tadrozhyan, Deceased, and All Persons Claiming By, Through or Under Such Decedent.

On May 29, 2026, Plaintiff filed

the First Amended Complaint ("FAC"), alleging causes of action for: (1) declaratory relief (adjudication of ownership interests); (2) negligent misrepresentation; (3) negligent misrepresentation and concealment; (4) declaratory relief (restitution to prevent unjust enrichment – debt payment); (5) declaratory relief (restitution to prevent unjust enrichment – tax payments); and (6) declaratory relief (imposition of equitable lien/subrogation rights).

On July 14, 2026, Akopyan filed the

instant demurrer to the FAC. On August 26, 2026, Plaintiff filed an opposition, and on September 2, 2026, Akopyan filed a reply.

Meet and confer

Pursuant to Code of Civil Procedure

section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the

responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Defendant's counsel declares that the parties exchanged meet-and-confer correspondence regarding the grounds for demurrer but were unable to resolve the issues. (Sargsyan Decl., ¶ 2.) However, there is no indication that the parties met and conferred in person, by telephone, or by videoconference as required by section 430.41.

Thus, the requirement is not satisfied, however, the Court elects to consider the demurrer on the merits.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed

against him or her.” (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) “The objection of uncertainty does not go to the failure to allege sufficient facts.” (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) “It goes to the doubt as to what the pleader means by the facts alleged.” (Id.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

III. ANALYSIS

Defendant

Akopyan demurs to the entire FAC on the grounds that it is time-barred and fails to specify whether the alleged contract is written, oral, or implied by conduct. Defendant also demurs to the first, third, fourth, fifth, and sixth causes of action for failure to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10(e). (Notice, pp. 3-4.)

Statute of limitations

Akopyan argues that the causes of actions in the FAC are time barred. Specifically, Akopyan contends that the claims are subject to the two-year limitations period under CCP §339, the three-year period under § CCP 338(d), and the four-year period under §337 and/or the five-year periods under §336 and §318. Akopyan argues that because

the underlying purchase transaction occurred in 2015, more than ten years before the action was filed, the claims are therefore untimely. (Demurrer, p. 7-10.)

In opposition, Plaintiff argues that the FAC sufficiently alleges delayed discovery. Plaintiff contends that he did not discover the facts underlying his claims until 2025, when he learned through communications with Akopyan's counsel that title to the Pennerton Property remained in Selma's name rather than Plaintiffs. (Opposition, pp. 5-8.)

"Under the 'delayed discovery rule,' . . . the accrual date of a cause of action is delayed until the plaintiff is aware of his or her injury and its cause. The plaintiff is charged with this awareness as of the date he or she suspects or should suspect that the injury was caused by someone's wrongful act. The period of limitations, therefore, will begin to run when the plaintiff has a 'suspicion of wrongdoing'; in other words, when he or she has notice of information of circumstances to put a reasonable person on inquiry." (Brandon G. v. Gray (2003) 111 Cal. App. 4th 29, 35.) "A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer." (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal. App. 4th 1308, 1319.)

Here, the FAC alleges the time and manner of Plaintiff's discovery. Plaintiff alleges that in approximately June 2025, he learned that the property taxes on the Pennerton Property had not been paid, contacted Akopyan concerning the unpaid taxes, and thereafter, through communications between counsel, first learned that the property reflected Selma as the owner rather than Plaintiff. Plaintiff further alleges this was the first time he became aware of a potential defect in his title. (FAC, ¶¶ 37-40.)

However, the FAC does not allege Plaintiff's inability to have discovered the title issue earlier despite reasonable diligence. Plaintiff alleges that Svetlana's lack of ownership was unknown to him at the time of the transaction and that neither Svetlana nor Selma disclosed that fact. (FAC, ¶ 29.) He also alleges that, before the

transaction closed, he had no notice or knowledge that Svetlana might not hold an ownership interest in the property. (FAC, ¶ 36.) These allegations establish Plaintiff's claimed lack of actual knowledge, but they do not explain what diligence Plaintiff exercised in connection with the purchase or why the ownership reflected in the title records could not reasonably have been discovered earlier. Because Plaintiff bears the burden of pleading facts showing his inability to have made an earlier discovery despite reasonable diligence, allegations that he simply lacked notice or knowledge are insufficient. (E-Fab, supra, 153 Cal.App.4th at p. 1319.)

Based on the foregoing, the Court SUSTAINS the demurrer to the third, fourth and sixth causes of action on statute of limitations grounds, with 20 days' leave to amend to sufficiently allege delayed discovery. The demurrer to the first and fifth causes of action on statute of limitations grounds is OVERRULED because the first cause of action concerns the parties' present competing ownership interests in the Pennerton Property, and the fifth cause of action alleges additional property tax payments made "from and since" the recording of the Grant Deed and does not establish that the entire claim falls outside the applicable limitations period."

First cause of action - declaratory relief (adjudication of ownership interests)

As to this cause of action, Akopyan argues that Plaintiff fails to state a claim. In opposition, Plaintiff argues that the FAC sufficiently identifies an actual controversy between Akopyan and Plaintiff concerning their respective interests in the Pennerton Property. (Opposition, p. 6; FAC ¶¶ 45, 50.)

CCP section

1060 provides that a person may bring an action for declaratory relief if he or she "desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property" (Code Civ. Proc., § 1060.) A request for declaratory relief may be brought alone or with other relief. (See id.)

To state a declaratory relief claim, the plaintiff must allege a proper subject of declaratory relief and an actual controversy involving justiciable questions relating to the party's rights or obligations.

(See *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.)

Here, the Court finds that

Plaintiff has sufficiently alleged an actual controversy concerning the parties' interests in the Pennerton Property. Plaintiff alleges that he purchased the property and paid consideration for it, and that Selma and Svetlana are estopped from claiming any continuing ownership interest in the property. (FAC, ¶¶ 47-48.) Plaintiff further alleges that Edvard, as Selma's testate or intestate heir, claims an ownership and/or beneficial interest in the title to the property. (FAC, ¶ 49.) Plaintiff seeks a judicial declaration concerning his and Defendants' respective rights in the property under the Grant Deed. (FAC, ¶ 51.) These allegations are sufficient to allege an actual controversy for purposes of declaratory relief.

Thus, the Demurrer as to this cause of action is OVERRULED.

Third cause of action - negligent misrepresentation and concealment

Akopyan demurs to this cause of action arguing that to the extent it is asserted against him as a testate or intestate successor of Selma, fails to state a claim. Also, that it is time barred and the FAC does not allege any concealment by Akopyan. (Demurrer, pp. 9-10.)

In opposition, Plaintiff argues the FAC sufficiently alleges claims against Akopyan, including in his capacity as heir of Selma, and the delayed discovery rule apply.

Here, this cause of action is based on alleged misrepresentations and concealment concerning ownership of the Pennerton Property, in connection with the 2015 Purchase Transaction. Although Plaintiff alleges that he did not discover the alleged until 2025, as discussed above, the FAC does not allege facts showing why he could not have discovered the defect earlier through reasonable diligence. Thus, Plaintiff has not sufficiently alleged delayed discovery to avoid the statute of limitations.

The demurrer to the third cause of action is therefore SUSTAINED with 20 days' leave to amend.

Fourth and fifth causes of action: Restitution/unjust enrichment

Akopyan demurs to these causes of action arguing that they fail because the FAC does not allege that he knowingly received or accepted any benefit from Plaintiff. Akopyan further argues that any benefit he received would have been indirect because he was not a party to the 2015 Purchase Transaction. (Demurrer, pp. 9-10.) In opposition, Plaintiff argues that the FAC sufficiently alleges claims for restitution to prevent unjust enrichment and that unjust enrichment may be construed as a quasi-contract claim seeking restitution. (Opposition, p. 6.)

Here, the Court finds that the FAC sufficiently alleges that Akopyan received and retained a benefit. As to the fourth cause of action, Plaintiff alleges that \$340,339.47 of his purchase funds were used to pay debts owed by Svetlana and Selma. (FAC, ¶ 73.) Plaintiff further alleges that Selma's heirs, including Akopyan, were thereby freed from debt for which the Estate and heirs otherwise would have been responsible, and that Akopyan received and retained the benefit of that payoff. (FAC, ¶¶ 76-77.) These allegations are sufficient at the pleading stage to allege that Akopyan received a benefit whose retention Plaintiff contends would be unjust

However, as discussed above, the fourth cause of action is based on debt payment made in connection with the 2015 Purchase Transaction. Plaintiff has not sufficiently alleged delayed discovery. Thus, the demurrer to the fourth cause of action is SUSTAINED with leave to amend.

As to the fifth cause of action, Plaintiff alleges that \$4,530.87 in taxes were paid at the close of the Purchase Transaction and that, after the Grant Deed was recorded, Plaintiff paid an additional \$160,177.04 in property taxes. (FAC, ¶¶ 82-84.) Plaintiff further alleges that Akopyan and Selma's other heirs received and retained the benefit of these tax payments because they otherwise would have been responsible for the taxes if they remained owners of the property. (FAC, ¶¶ 85-90.) These allegations sufficiently allege that Akopyan received a retained a benefit.

Because the fifth cause of action

is not based solely on payments made in 2015, it does not appear from the face of the FAC that the entire claim is time-barred. (See FAC, ¶ 83.) Thus, the demurrer to the fifth cause of action is OVERRULED.

Sixth cause of action: equitable lien/subrogation

As discussed above, the Court finds that the sixth cause of action is barred by the statute of limitations. Plaintiff alleges that he paid the debt to protect his intended ownership interest in the property and seeks to be subrogated to the position of the prior lienholder. (FAC, ¶¶ 96-103.) However, Plaintiff has not sufficiently alleged delayed discovery to avoid the statute of limitations.

Thus, the demurrer to the sixth cause of action is SUSTAINED with leave to amend.

Demurrer to entire FAC - CCP 430.10(g)

Akopyan also demurs to the entire FAC under Code of Civil Procedure section 430.10(g) arguing that the FAC is uncertain as to whether the alleged agreement between Plaintiff and Akopyan was written, oral, or implied. (Demurrer, p. 11.)

The FAC alleges that Plaintiff and Akopyan had an agreement allowing Akopyan to continue living at the Pennerton Property in exchange for paying the property taxes, but does not specify whether the agreement was written, oral, or implied.

Thus, the demurrer under section 430.10(g) is SUSTAINED with 20 days' leave to amend.

IV. ORDER

The Court SUSTAINS the demurrer to the Third, Fourth, and Sixth causes of action on statute of limitations grounds, with 20 days' leave to amend. The Court SUSTAINS the demurrer under Code of Civil Procedure section 430.10(g), with 20 days' leave to amend. The Court OVERRULES the demurrer to the First and Fifth causes of action.

Akopyan is to give notice.

Dated: September 10, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT